

**Court No. - 21**

**Case :-** WRIT - C No. - 27673 of 2024

**Petitioner :-** Suresh Chander

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Vimal Kumar

**Counsel for Respondent :-** Baleshwar Chaturvedi,C.S.C.

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Manish Kumar Nigam,J.**

1. P.N. Rai, learned counsel for respondent, Electricity Department, prays for and is granted time to obtain instructions.
2. List as fresh on 16 September 2024, showing the name of Shri P.N. Rai as counsel for the respondent, Electricity Department.

**Order Date :-** 23.8.2024

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(Manish Kumar Nigam,J.)      (Manoj Kumar Gupta,J.)

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**Petitioner :-** Suresh Chander

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**Counsel for Petitioner :-** Vimal Kumar

**Counsel for Respondent :-** Paras Nath Rai, Baleshwar  
Chaturvedi, C.S.C.

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Manish Kumar Nigam, J.**

1. The petitioner has challenged the recovery citation dated 29.06.2024 issued by respondent No. 3 for recovery of electricity dues from the petitioner on the basis of proceedings under Section 126 of the Electricity Act, 2003.
2. The case of the petitioner is that the respondents have issued the impugned recovery citation without following the procedure prescribed for assessment under Section 126 of the Electricity Act and Clause 6.8 of the U.P. Electricity Supply Code, 2005.
3. The concerned Executive Engineer has furnished written instructions in which it is stated that the impugned recovery citation has been withdrawn and now the petitioner will be provided opportunity of hearing so as to follow the procedure prescribed under the U.P. Electricity Supply Code, 2005 and a fresh order would be passed.
4. The communication sent to District Magistrate on 06.09.2024 for withdrawing the recovery has also been placed on record.
5. We find that the aforesaid decision has been taken by the concerned Executive Engineer after we had issued notices and sought instructions from the respondents.
6. We do not approve of such state of affairs. In case there was defect in the procedure, the recovery should have been withdrawn forthwith so that assessee is not forced to approach this Court.
7. We permit the Electricity Department to proceed afresh, subject to payment of a cost of Rs. 10,000/- to the petitioner.

8. Let the instant order be placed before Managing Director of the concerned DISCOM so that he may decide as to whether the said cost would be paid by the DISCOM or by the concerned Executive Engineer.

9. The petition is disposed of accordingly.

10. This order has been passed in presence of Sri Paras Nath Rai, learned counsel appearing for respondent Nos. 2 and 3.

**Order Date :- 17.9.2024**

Nitika Sri.

**(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)**